BRENDAN NGWA NFORBI
Plaintiff, In Propria Persona
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UNITED STATES DISTRICT COURT

EASTERN DISTRICT OF CALIFORNIA

BRENDAN NGWA NFORBI, Plaintiff, v. **HOME DEPOT U.S.A., INC.,** **a Delaware corporation,** Defendant.	Case No. _____ **COMPLAINT FOR DAMAGES** Penal Code § 290.46(j)(2)(E), (j)(4)(A) *[Jury Trial Demanded]*

Plaintiff BRENDAN NGWA NFORBI, appearing in propria persona, alleges:

I. NATURE OF THE ACTION

1. This action concerns an accepted Home Depot warehouse, distribution, or fulfillment hire at 5395 Hopkins Road, Tracy, California.

2. Plaintiff accepted the employment and began onboarding. Home Depot then required an employment background check. After that screening process, Home Depot stopped the onboarding and prevented Plaintiff from beginning or continuing the accepted employment.

3. Plaintiff alleges on information and belief, and on the factual basis stated below, that Home Depot's employment-screening vendor furnished Home Depot information concerning

Plaintiff disclosed pursuant to California Penal Code § 290.46, including Plaintiff's California registry information, and that Home Depot used that information for the employment decision.

4. Section 290.46(j)(2)(E) prohibits use of information disclosed pursuant to California's Megan's Law internet website for a purpose relating to employment unless a statutory authorization applies.

5. Plaintiff does not allege that Home Depot was prohibited from considering independently obtained conviction information from an otherwise lawful source. The claim is source-specific: Plaintiff alleges that Home Depot used information disclosed pursuant to § 290.46 itself.

6. Plaintiff does not possess Home Depot's transaction-specific report and does not allege its source-field wording as known fact. The report, source fields, adjudication information, access history, and decision records are presently within Home Depot's and the screening vendor's possession.

II. JURISDICTION AND VENUE

7. This Court has original jurisdiction under 28 U.S.C. § 1332(a). Plaintiff is a citizen of California.

8. Home Depot U.S.A., Inc. is incorporated in Delaware and has its principal place of business in Atlanta, Georgia. It is therefore a citizen of Delaware and Georgia for diversity purposes.

9. The amount in controversy exceeds $75,000, exclusive of interest and costs, based in good faith on the accepted employment compensation and consequential economic loss

according to proof, together with the additional and exemplary relief authorized by Penal Code § 290.46(j)(4)(A). Plaintiff does not invent an hourly wage or work duration not presently contained in his records, and he does not rely on the statute's optional civil-penalty remedy to establish federal jurisdiction.

10. Plaintiff has Article III standing. He alleges a concrete economic injury—the loss of an accepted employment opportunity and its compensation—caused by Home Depot's alleged prohibited employment use and redressable through damages.

11. Venue is proper under 28 U.S.C. § 1391(b)(2) because a substantial part of the events occurred in Tracy, San Joaquin County, California.

12. Under Eastern District of California Local Rule 120(d), civil actions arising in San Joaquin County are commenced on the Sacramento side of the District.

III. PARTIES

13. Plaintiff Brendan Ngwa Nforbi is a natural person and California citizen residing in San Joaquin County. He was the accepted hire and the person who was the subject of the employment background screening alleged here.

14. Defendant Home Depot U.S.A., Inc. is a Delaware corporation qualified to do business in California.

15. On information and belief, Home Depot U.S.A., Inc. owned, operated, staffed, or controlled the Tracy warehouse/distribution facility involved in Plaintiff's hire and made or controlled the employment decision challenged here.

16. Before service, Plaintiff will reconfirm Home Depot's current California Secretary of State agent. The Tracy facility is a worksite, not a separate legal entity.

IV. THE TRACY HIRE AND BACKGROUND SCREEN

17. On or about August 2024, Home Depot accepted Plaintiff for employment at its Tracy warehouse, distribution, or fulfillment facility at 5395 Hopkins Road.

18. Plaintiff accepted the employment and began Home Depot's onboarding process.

19. As part of onboarding, Home Depot required and initiated an employment background check concerning Plaintiff.

20. The position was warehouse, distribution, or fulfillment work. Plaintiff was not hired for a commercial motor-vehicle driving assignment.

21. Plaintiff was publicly listed on California's Megan's Law internet website at the time of the screening.

22. After the background-screening process, Home Depot ceased Plaintiff's onboarding and prevented him from beginning or continuing the accepted employment.

23. Home Depot did not communicate to Plaintiff an independent post-screening reason for ending the hire.

V. FACTUAL BASIS FOR THE FIRST ADVANTAGE ALLEGATIONS

24. Plaintiff alleges on information and belief that First Advantage Background Services Corp. was the consumer-reporting / employment-screening vendor Home Depot used for Plaintiff's screening.

25. That allegation is not based solely on the fact that another employer used First Advantage.

26. In *Ford v. Home Depot U.S.A., Inc.*, No. 3:19-cv-00754-AJB-LL (S.D. Cal.), a Home Depot-branded Background Check Disclosure and Authorization filed as Exhibit 1 identifies First Advantage Background Services Corp. as the consumer reporting agency Home Depot would use to procure California investigative consumer reports, directs background-report requests to Home Depot care of First Advantage, and describes a pre-adverse process involving a report and a summary of FCRA rights.

27. That public Home Depot–First Advantage disclosure is a concrete factual basis to allege First Advantage's role on information and belief while the transaction-specific order and report remain in Home Depot's and First Advantage's possession.

VI. FACTUAL BASIS FOR REGISTRY SOURCE AND USE

28. On information and belief, the same CRA, screening this same consumer in the same period, returned California-registry source fields. Plaintiff does not allege that any other employer's report is Home Depot's report, and he does not attach or describe those reports as if they were.

29. On information and belief, First Advantage prepared or furnished an

employment-screening report or result concerning Plaintiff to Home Depot in connection with the Tracy hire.

30. On information and belief, that Home Depot-specific screening contained information concerning Plaintiff disclosed pursuant to Penal Code § 290.46, including Plaintiff's California registry information.

31. On information and belief, Home Depot received, accessed, considered, or used that § 290.46 information in deciding whether Plaintiff would begin or continue the accepted Tracy employment.

32. Plaintiff alleges that the § 290.46 information was a substantial factor in Home Depot's decision.

33. The factual basis includes the accepted hire, the intervening background screen, Plaintiff's contemporaneous California registry listing, the public Home Depot–First Advantage disclosure, the cessation of onboarding after the screen, and the absence of a communicated independent reason.

34. The precise source-field wording, screening package, adjudication code, access timestamp, internal reason code, and decisionmaker identity are matters recorded in Home Depot's and First Advantage's systems.

VII. SOURCE-SPECIFIC LIMIT OF THE CLAIM

35. Plaintiff does not plead a claim based on the abstract existence of his conviction or registration status. He pleads actual use of information disclosed pursuant to § 290.46.

36. Independently obtained court-record information is different from prohibited employment use of Megan's Law website information. This complaint alleges the latter.

37. If the Home Depot-specific report is properly considered and contradicts Plaintiff's information-and-belief allegation, Plaintiff's theory must conform to that document.

VIII. STATUTE OF LIMITATIONS

38. The alleged prohibited employment use occurred on or about August 2024.

39. Plaintiff seeks the compensatory, additional, exemplary, and fee remedies authorized by Penal Code § 290.46(j)(4)(A) for the statutory liability alleged here.

40. Plaintiff proceeds on the three-year limitations period for a liability created by statute under Code of Civil Procedure § 338(a), which places an August 2024 employment-use claim within the limitations period in September 2026.

41. Because § 290.46(j)(4)(A) also contains an optional civil-penalty remedy, Plaintiff does not rely on that civil-penalty remedy to establish timeliness and does not seek it in this opening complaint.

IX. CAUSE OF ACTION

Unauthorized Employment Use of Information Disclosed Pursuant to Penal Code § 290.46

Penal Code § 290.46(j)(2)(E), (j)(4)(A)

42. Plaintiff realleges paragraphs 1 through 41.

43. Plaintiff is a person as to whom information is disclosed on California's Megan's Law internet website established pursuant to Penal Code § 290.46.

44. Section 290.46(j)(2)(E) prohibits use of information disclosed pursuant to § 290.46 for purposes relating to employment except where authorized by § 290.46(j)(1) or another provision of law.

45. On information and belief, information disclosed pursuant to § 290.46 concerning Plaintiff was furnished or made available to Home Depot through its employment-screening process.

46. On information and belief, Home Depot received, accessed, considered, and used that information for a purpose relating to employment.

47. The use was a substantial factor in Home Depot's decision to deny, withdraw, end, prevent, or not finalize Plaintiff's accepted Tracy employment.

48. Plaintiff is unaware of any law authorizing Home Depot to use information disclosed pursuant to § 290.46 for this warehouse, distribution, or fulfillment position.

49. Home Depot thereby violated Penal Code § 290.46(j)(2)(E).

50. Penal Code § 290.46(j)(4)(A) authorizes actual damages, an additional amount within the statutory range, attorney's fees, and exemplary damages upon the required showing, among other remedies.

51. Plaintiff does not seek preventive relief under § 290.46(j)(4)(B) in this opening

complaint.

X. DAMAGES

52. Plaintiff suffered economic harm including lost employment compensation, lost earning opportunity, and other consequential loss according to proof.

53. Plaintiff seeks actual damages and the additional and exemplary relief legally available under § 290.46(j)(4)(A), without duplicative recovery.

54. Plaintiff does not presently assign an invented hourly wage, weekly-hours figure, or employment duration unsupported by the current record.

XI. PRAYER FOR RELIEF

WHEREFORE, Plaintiff requests judgment against Home Depot U.S.A., Inc. for:

A. Actual damages according to proof;

B. The additional amount authorized by Penal Code § 290.46(j)(4)(A);

C. Exemplary damages to the extent authorized and proven;

D. Attorney's fees if counsel later appears and the statute permits recovery;

E. Taxable costs;

F. Prejudgment and postjudgment interest as allowed by law; and

G. Such other nonduplicative relief as the Court deems just.

XII. JURY DEMAND

Plaintiff demands trial by jury on all issues so triable.

Dated: September 15, 2026

Respectfully submitted,



BRENDAN NGWA NFORBI

Plaintiff, In Propria Persona